

RESOLUTION NO. _____

ENTITLED: "A RESOLUTION EXPRESSING THE WILL OF THE GOVERNING BODY DIRECTING THE MAYOR TO HIRE A SPECIAL PROJECTS MANAGER TO ASSIST THE CITY OF CHEYENNE IN MANAGING AND COORDINATING CERTAIN 6TH PENNY TAX PROJECTS AND OTHER CITY PROJECT PRIORITIES."

WHEREAS, state law allows counties in cooperation with cities and towns to fund specified funding priorities through a voluntary one percent (1%) specific purpose sales and use tax ("6th penny tax") to be decided by a majority vote of the affected citizenry;

WHEREAS, as a result of the 2021 November election, voters in Laramie County approved ten (10) propositions to be funded by the 6th penny tax that directly benefit the City of Cheyenne;

WHEREAS, six (6) of the propositions directly benefiting the City of Cheyenne specify certain funding priorities as provided herein, which account for over thirty-five million dollars (\$35,000,000.00) in taxpayer funds:

- A. Proposition #5, providing \$14,000,000.00 for city road maintenance projects;
- B. Proposition #6, providing:
 - 1. \$3,090,372.00 for the Cemetery Irrigation Project to replace the fifty (50) year old irrigation system; and
 - 2. \$2,500,000.00 for Municipal Building Plan Project to prepare a plan to determine space needs, engineering, and design of a Cheyenne Municipal Building, including a fund for other needs at the current Municipal Building.
- C. Proposition #7, providing \$2,500,000.00 for the Cheyenne Greenway System Maintenance Project to maintain the Cheyenne Greenway System;
- D. Proposition #8, providing:
 - 1. \$3,500,000.00 for the Cheyenne Greenway System Expansion Project to expand the Cheyenne Greenway System; and
 - 2. \$250,000.00 for the Johnson Pool Project to prepare a plan to determine location, engineering and design for the renovation or replacement of the Johnson Pool.
- E. Proposition #10, providing \$6,017,966.00 for the Downtown Improvements and Maintenance Project to improve and maintain infrastructure such as roads, parking,

curbs, gutters, sidewalks, lighting and alleys in the Downtown Development Authority District and to operate and maintain the Depot Plaza; and

- F. Proposition #12, providing \$3,500,000.00 for large project completion to provide funding to work with outside partners to complete community large projects, such as the downtown hole, formerly Mary's Bake Shoppe, the Reed Avenue Corridor, the Belvoir Ranch and the Hitching Post property.

WHEREAS, the funding generated under Propositions #10 and #12 will also assist in the completion and maintenance of the 17th Street Lighting Project, the 15th Street Rail Experience and the Roundhouse Walkway Experience;

WHEREAS, because the voters entrusted the City of Cheyenne to be good stewards of their tax dollars, it is imperative that the City's execution of these six (6) approved propositions be done in the most efficient and cost effective manner;

WHEREAS, to ensure the City of Cheyenne satisfies this crucial obligation, the Governing Body intends to create the position of Special Projects Manager within the City of Cheyenne government;

WHEREAS, the Special Projects Manager shall oversee the City's 6th penny tax funding priorities specified herein and coordinate these priorities with the various vested stakeholders to ensure the impacts from citizen tax dollars are maximized to the greatest extent possible;

WHEREAS, the Governing Body intends for the Special Projects Manager position to be located within the Office of the Mayor and for the Mayor to promptly appoint a Special Projects Manager, which person shall be the most experienced and qualified candidate who will report to and be supervised by the Mayor;

WHEREAS, the appointment of a Special Projects Manager will also assist the City of Cheyenne in other important areas by:

- A. Coordinating road maintenance and development projects throughout the city of Cheyenne with the Wyoming Department of Transportation and other stakeholders to maximize the effectiveness of city, state and federal funds;
- B. Working with the City Grants Manager to utilize all city resources in order to maximize the impact of taxpayer funds for city project priorities; and
- C. Working on other tasks and priorities as designated by the Mayor.

WHEREAS, to cover the costs incurred for the necessary salary, taxes, benefits and other associated costs for the Special Projects Manager position, the City of Cheyenne shall fund the position using both dollars from the general fund and by using 6th penny tax revenue, prioritizing first any available interest earned thereon. The general fund shall cover twenty-five percent (25%)

of the incurred costs, while 6th penny tax revenue shall cover the remaining seventy-five percent (75%) of the necessary salary, taxes, benefits and other associated costs for the position; and

WHEREAS, of the seventy-five percent (75%) of the necessary salary, taxes, benefits and other associated costs for the Special Projects Manager position being funded with 6th penny tax revenue, the approved propositions shall contribute proportionately to cover the costs incurred for the position as follows:

- C. Thirty-nine and six-tenths percent (39.6%) shall be levied against Proposition #5 funds;
- D. The following percentages shall be levied against Proposition #6 funds;
 - 1. Eight and seven-tenths percent (8.7%) shall be levied against the funds available for the Cemetery Irrigation Project; and
 - 2. Seven and one-tenth percent (7.1%) shall be levied against the funds available for the Municipal Building Plan Project.
- E. Seven and one-tenth percent (7.1%) shall be levied against Proposition #7 funds;
- E. The following percentages shall be levied against Proposition #8 funds;
 - 1. Nine and nine-tenths percent (9.9%) shall be levied against the funds available for the Cheyenne Greenway System Expansion Project; and
 - 2. Seven-tenths percent (0.7%) shall be levied against the funds available for the Johnson Pool Project.
- F. Seventeen percent (17%) shall be levied against Proposition #10 funds; and
- G. Nine and nine-tenths percent (9.9%) shall be levied against Proposition #12 funds.

NOW, THEREFORE, BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING, that the position of Special Projects Manager for the City of Cheyenne government is created within the Office of the Mayor, which position shall be vested with the necessary authority to carry out the duties and obligations as specified herein;

BE IT FURTHER RESOLVED, the Special Projects Manager's attendant salary, taxes, benefits and other associated costs shall be funded as specified herein;

BE IT FURTHER RESOLVED, that the Mayor shall promptly fill the Special Projects Manager position with the most experienced and qualified candidate, but in no case shall the position remain unfilled after December 31, 2022; and

BE IT FURTHER RESOLVED, that the Governing Body through issuance of this Resolution consents to the candidate to be appointed by the Mayor with no further approval by the governing body required.

PRESENTED, READ AND ADOPTED this _____ day of _____, 2022.

Patrick Collins, Mayor

(SEAL)

ATTEST:

Kristina F. Jones, City Clerk